

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MAVL CAPITAL INC., IAM & AL GROUP INC., AND MAXIM
OSTROVSKIY, *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC. AND DMITRY ALPER,
Respondents.

DOCKET NO. 16-16

Served: March 1, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING COMPLAINANTS' MOTION TO ENLARGE TIME TO FILE REMAND BRIEF

On February 5, 2021, an order was issued extending the deadline for Complainants to file their brief, proposed findings of fact, and appendix to February 22, 2021. Order Denying Complainants' Motion for Discovery Related Sanctions at 3. On February 22, 2021, an hour before the brief was due, Complainants requested a fifteen-day extension of all dates in the briefing schedule. Complainants' Motion to Enlarge Time to File Remand Brief ("Motion") at 1.

Complainants assert that good cause exists under 46 C.F.R. § 502.102(a) of the Commission's Rules to grant their motion because Complainants' counsel learned the day before the brief was due that an immediate family member had tested positive for the COVID-19 virus. Motion at 2. According to Complainants, to comply with quarantine requirements their counsel must quarantine and cannot travel to his office where the files needed to complete the brief are kept. Motion at 2. Complainants further state that they attempted to confer with Respondents in accordance with the requirements of 46 C.F.R. § 502.71, but were unable to reach Respondents' counsel by phone. Motion at 1.

On February 26, 2021, Respondents submitted a Response to Complainants' Motion to Enlarge Time ("Response to Motion"). Respondents state that they do "not necessarily object[] to a brief extension of time to file briefs" but note that counsel for Complainants was able to file a motion on a different docket on the day of his quarantine. Response to Motion at 2.

Good cause having been stated, and no evidence to the contrary having been shown, it is hereby ordered that Complainants' motion for a fifteen-day extension of all dates in the briefing schedule be **GRANTED**.

The parties shall file their briefs by the following deadlines:

March 9, 2021	Complainants file brief, proposed findings of fact, and appendix.
April 6, 2021	Respondents file opposition brief, proposed findings of fact and responses to Complainants' proposed findings of fact, and appendix.
April 20, 2021	Complainants file reply brief and responses to Respondents' proposed findings of fact.



Erin M. Wirth
Chief Administrative Law Judge